

02 13.02.2020

Heard learned counsel for the petitioner.

This writ application has been filed against the order dated 23.11.2019 passed by the learned Judge, Family Court, Balasore in C.P. No.431 of 2015 rejecting the petition for amendment filed by him under Order-6, Rule 17 of the Code of Civil Procedure.

Rule-5 of Hindu Marriage and Divorce (Orissa High Court) Rules, 1956 has succinctly enunciates as:

“5. Necessary parties (a) In every petition for divorce or judicial separation on the ground that the respondent is living a adultery or has committed adultery with any person, the petitioner shall make such person a co-respondent. The petitioner, may, however, apply to the Court by an application supported by an affidavit for leave to dispense with the joinder of such person as a co-respondent on any of the following grounds:-

(i) That the name of such person is unknown to the petitioner although he has made due efforts for discovery;

(ii) That such person is dead;

(iii) That the respondent being the wife is leading the life of a prostitute and that the petitioner knows of no person with whom adultery has been committed;

(iv) For any other sufficient reason the Court may deem fit to consider.

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(b) In every petition under Section 11 of the Act on the ground that the condition in Section 5 (1) is contravened the petition shall make the spouse alleged to be living at the time of the marriage a co-respondent.

(c) In every petition under Section 13 (2) (i) of the Act the petition shall make “the other wife” mentioned in that section a co-respondent.”

Perused the order 23.11.2019 passed by the learned Judge, Family Court, Balasore in C.P. No.431 of 2015.

In view of the submission made and in view of Rule-5 of Hindu Marriage and Divorce (Orissa High Court) Rules, 1956, this Court feels that there is error apparent on the face of the order dated 23.11.2019. Accordingly, this Court sets aside the order dated 23.11.2019 passed by the learned Judge, Family Court, Balasore in C.P. No.431 of 2015 and allows the amendment, as prayed for. It is also made clear that the petitioner is granted three weeks' time from the date of receipt of the certified copy of this order to file amendment as sought for before the learned court below and the learned court below is directed to proceed the matter and dispose of the same in accordance with law.

The writ application is accordingly disposed of.

Urgent certified copy of this order be granted on proper application.

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S.K.Panigrahi, J.

